

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

August 31, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Carrier v. PS80 Partners, LLC 2024-01372839	Defendant Ryan Patrick Sauter’s demurrer to the Second Amended Complaint of Mateusz Carrier is OVERRULED. Defendant asserts several bases for the demurrer: (1) plaintiff failed to attach the contract; (2) defendant is not a signatory to the contract; and (3) the fraud allegation is not sufficiently asserted. <u>Failure to Attach the Contract.</u> The contract does not need to be attached to the complaint. A written contract may be pleaded either by its terms, set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference, or by its legal effect. (<i>McKell v. Washington Mutual, Inc.</i> (2006) 142 Cal.App.4th 1457, 1489.) The allegations in the operative complaint identify the parties (Carrier and PS80), the date of the contract (April 15, 2019), the nature of the instrument (written promissory note), and the substance of the relevant terms: the principal amount (\$442,000), the interest rate (10 percent per annum), and the maturity date (January 15, 2020). These allegations are sufficient when pleading by legal effect rather than attaching the contract itself. Therefore, the demurrer on this ground is OVERRULED. <u>Non-Signatory Liability.</u> A non-party to a contract can be liable for its breach or non-performance under alter-ego or successor liability. (<i>Rowe v. Exline</i> (2007) 153 Cal.App.4th 1276 [alter-ego]; <i>Brown Bark III, L.P. v. Haver</i> (2013) 219 Cal.App.4th 809 [successor liability].) The operative complaint sufficient alleges both theories. (Sec. Amd. Compl. ¶¶ 10-16.) Therefore, the demurrer on this ground is OVERRULED. <u>Specificity of Fraud Allegations.</u> To state a claim for fraudulent concealment, a plaintiff must allege: 1. the defendant concealed or suppressed a material fact; 2. the defendant had a duty to disclose the fact to the plaintiff; 3. the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; 4. the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed

#	Case Name	Tentative
		or suppressed fact; and 5. as a result of the concealment or suppression of the fact, the plaintiff sustained damage. <i>Nissan Motor Acceptance Cases</i>, (2021) 63 Cal.App.5th 793. In the case of alleged concealment, the specificity obligation is lessened. (<i>Alfaro v. Community Housing Impr. Syst.</i> (2009) 171 Cal. App.4th 1356). Here, plaintiff has met the pleading standard for fraud by concealment. The operative complaint sufficiently alleges concealed or suppressed material facts. (Sec. Amd. Compl. ¶¶ 20-25, 28-29, 31-38.) As such, the demurrer to the fourth cause of action is OVERRULED. Defendants shall answer the second amended complaint within ten days. The case management conference is continued to February 22, 2027 at 9:00 a.m. The order to show cause is discharged. Sauter shall give notice of this ruling.
51.	Dimar Enterprises, Inc. v. Mahmood 2020-01137619	Specially appearing defendant Cassandra Elizabeth Johnston's motion to set aside default and default judgment, and to dismiss for failure to serve, is GRANTED. (See Code Civ. Proc., §§ 473, subd. (d), 583.210, 583.250; <i>California Capital Ins. Co. v. Hoehn</i> (2024) 17 Cal.5th 207, 214-215 (<i>Hoehn</i>).) The court ORDERS the following vacated and set aside: (1) Johnston's default entered on 6/12/24, and (2) the default judgment entered on 11/22/24 as to Johnston only. The court further ORDERS plaintiff Dimar Enterprises, Inc. dba Drymaster's operative fourth amended complaint (4AC) dismissed without prejudice as to Johnston only. <u>Code Civ. Proc., § 473, subd. (d)</u>. Johnston has shown that her default and the default judgment entered against her are void due to improper service. (See Code Civ. Proc., § 473, subd. (d) ["The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."]; see also <i>California Capital Ins. Co. v. Hoehn</i> (2024) 17 Cal.5th 207, 214-215 (<i>Hoehn</i>).) Plaintiff's proof of service of the summons and operative complaint on Johnston shows service was effected by a registered process server. (Krause-Leemon Decl. at Ex. D.) A proof of service by a registered process server that complies with the applicable statutory requirements creates a

#	Case Name	Tentative
		rebuttable presumption of proper service. (<i>Floveyor Int'l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; accord <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390; see Evid. Code, § 647.) This rebuttable presumption does not arise here, however, because the subject proof of service does not comply with the requirements for proof of substitute service on an individual such as Johnston. (See Code Civ. Proc., § 417.10, subd. (a), Jud. Council of Cal., comments ["Substituted Service on Natural Person" requirements].) Proof of substantive service on an individual must state or show, among other things, "that the place of delivery was the dwelling house, usual place of abode, or usual place of business of [the] person" being served, and "that the person in whose presence the papers had been left was determined after careful inquiry by the process server to be a competent member of the household or a competent person apparently in charge of such business, as the case may be, who was at least 18 years of age...." (<i>Ibid.</i>; see <i>id.</i>, § 415.20, subd. (b); <i>Chinese Theater, LLC v. Starline Tours USA, Inc.</i> (2025) 115 Cal.App.5th 1048, 1057.) Here, the proof of service shows the process server knew the property to be an "Airbnb," identifies the recipient merely as an "Airbnb Occupant," and fails to state any facts connecting the "Airbnb Occupant" to Johnston. (See Krause-Leemon Decl. at Ex. D.) Johnston's declaration confirms that service was invalid in any event. Specifically, Johnston declares she is a resident of New York, has never been a resident of California, has never resided at 1406 W. Janeen Way, Anaheim, CA 92801 (property), and that this property has never been her residence, place of business, or usual place of abode, either in February 2024 or at any time. (Johnston Decl. ¶¶ 1-2, 6, 10-13.) She further declares she does not know anyone named Nick NEEDEDHAM and has never authorized anyone by that name to accept service for her at any time. (<i>Id.</i> ¶ 10.) This shows the process server did not leave the summons and operative complaint with a "competent member of the household or a person apparently in charge of [Johnston's] office, place of business, or usual mailing address," but rather, a random Airbnb guest with no connection to Johnston. (Code Civ. Proc., § 415.20, subd. (b).) " '[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction....' [Citations.]" (<i>Hoehn, supra</i>, 17 Cal.5th at p. 214.) A defendant is under no duty to respond to a defectively served

#	Case Name	Tentative
		summons, even if the defendant has actual notice of the action. (<i>Taylor-Rush v. Multitech Corp.</i> (1998) 217 Cal.App.3d 103, 110.) A fatally or defectively served summons will not confer personal jurisdiction over a defendant. (<i>MJS Enterprises, Inc. v. Superior Court</i> (1984) 153 Cal.App.3d 555, 557.) “ ‘Thus, a [default or] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.’ [Citations.]” (<i>Hoehn</i>, at pp. 214-215, 225.) <u>Failure to serve within three years, Code Civ. Proc., §§ 583.210, 583.250.</u> Code of Civil Procedure section 583.21 provides, in relevant part: “The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed.” (Code Civ. Proc., § 583.210, subd. (a).) Code of Civil Procedure section 583.250 provides that if service is not made within three years, “[t]he action shall be dismissed by the court on its own motion or on motion of any person interested in the action....” (<i>Id.</i>, § 583.250, subd. (a)(2).) Dismissal is mandatory. (<i>Id.</i>, § 583.250, subd. (b).) The three-year time period begins to run “after the action is commenced against the defendant,” regardless of whether that defendant is initially identified by name or as a “Doe.” (Code Civ. Proc., § 583.210, subd. (a); see <i>Norgart v. Upjohn Co.</i> (1999) 21 Cal.4th 383, 398 [“the plaintiff can ‘file[] a timely complaint [against a Doe defendant] under section 474.... From the time such a complaint is filed,’ under section 583.210, subdivision (a), [plaintiff] ‘has three years ... to identify ... the defendant,’ amend the complaint, and ‘serve [her] ..., effectively enlarging the ... limitations period for three years’ through the doctrine that the amended complaint ‘relates back’ to the original one”].) Here, plaintiff has sued Johnston as “Doe 2.” (ROA No. 213 [Doe amendment to 4AC filed on 12/21/23].) From the onset of this litigation and in every version of the complaint, plaintiff has named and sued “Doe 2” as an owner or “reputed” owner of the subject Anaheim property at 1406 W. Janeen Way, Anaheim, CA 92801. (3/10/20 Compl. ¶¶ 2, 5; 4/16/21 1AC ¶¶ 2, 5; 2/8/22 2AC ¶¶ 2, 7; 10/17/22 3AC ¶¶ 2, 7; 3/20/23 4AC ¶¶ 2, 8.)

#	Case Name	Tentative
		But Johnston was not an “owner” of and “ had no interest of any kind” in the subject Anaheim property until 6/3/22, when she purchased it from Mahmood. (Johnston Decl. ¶¶ 3-4, Ex. F.) Thus, the first version of the complaint that could have been referring to Johnston as “Doe 2” is the third amended complaint (3AC) filed on 10/17/22, since the prior versions of the complaint were filed before Johnston ever had any interest in the property. (See 10/17/22 TAC ¶¶ 2, 7.) Three years (1,095 days) from the filing of the 3AC on 10/17/22 was Thursday 10/16/25. (See Gov. Code, § 6803 [defining “ ‘[y]ear’ ” as “a period of 365 days” and stating “[t]he added day of a leap year, and the day immediately preceding, if they occur in any such period, shall be reckoned together as one day”].) Indeed, even if the court were to calculate the three-year period from the 4AC, which indisputably names Johnston as Doe 2, three years (1,095 days) from the filing of the 4AC on 3/20/23 was Thursday 3/19/26. (See Gov. Code, § 6803; <i>Norgart v. Upjohn Co.</i>, <i>supra</i>, 21 Cal.4th at p. 398; see also 3/20/23 4AC ¶¶ 2, 8; ROA No. 213 [Doe amendment to 4AC].) Both 10/16/25 and 3/19/26 have long since passed, and nothing in the record suggests plaintiff has served or attempted to serve Johnston again following the faulty substitute service on 2/23/24. Plaintiff has also not identified or demonstrated any statutory grounds for tolling. (See Code Civ. Proc., §§ 583.240 [statutory exceptions], 583.250, subd. (b) [“requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute”]; see also Opp., in passim.) As such, dismissal is mandatory. (Code Civ. Proc., § 583.250, subd. (b).) Based on the foregoing analysis, plaintiff’s request for discovery is DENIED. <u>Request for judicial notice.</u> Plaintiff’s request for judicial notice is GRANTED as to the “existence and contents [of the recorded documents], though not of disputed or disputable facts stated therein.” (<i>Yvanova v. New Century Mortg. Corp.</i> (2016) 62 Cal.4th 919, 924, fn. 1.) <u>Objections.</u> Johnston’s objections to the supplemental declaration of plaintiff’s counsel are SUSTAINED as to objection Nos. 1-7, and otherwise OVERRULED.

#	Case Name	Tentative
		Johnston shall serve and file a formal order of dismissal for the court's signature within 10 days. Johnston shall give notice of all of the above.
52.		
53.	Elite MD, Inc. v. Chandel 2025-01504466	Defendants Amit Chandel and Focus Group CPA, Inc.'s Demurrer to the First Amended Complaint ("FAC") is SUSTAINED. Defendants demur to the first and fourth causes of action in the First Amended Complaint. First Cause of Action – Professional Negligence The elements of a claim for professional negligence are: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. (<i>Paul v. Patton</i> (2015) 235 Cal.App.4th 1088, 1095.) The FAC alleges Defendants breached a duty to Plaintiffs to keep their financial and business records confidential. (FAC, ¶ 39.) Plaintiffs do not allege any supporting facts regarding the purported disclosure, i.e., what, when, who or how. They also do not allege how the breach of confidentiality caused the \$1,000,000 in damages. Accordingly, the demurrer to the first cause of action is SUSTAINED. Fourth Cause of Action – Breach of Fiduciary Duty "A fiduciary relationship is any relation existing between parties to a transaction wherein one of the parties is bound to act with the utmost good faith for the benefit of the other party." (<i>Gilman v. Dalby</i> (2009) 176 Cal.App.4th 606, 613.) The elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach. (<i>Mendoza v. Continental Sales Co.</i> (2006) 140 Cal.App.4th 1395, 1405.) "[B]reach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence" (<i>Stanley v.</i>

#	Case Name	Tentative
		<i>Richmond</i> (1995) 35 Cal.App.4th 1070, 1086.) No California reported decisions have ever found that an accountant and client engagement creates a fiduciary relationship. "The creation of a fiduciary obligation or duty must, at a minimum, arise from facts demonstrating the formation of a confidential relationship." (<i>Richard B.. LeVine, Inc. v. Higashi</i> (2005) 131 Cal.App.4th 566, 586.) "A fiduciary relationship is created where a person reposes trust and confidence in another and the person in whom such confidence is reposed obtains control over the other person's affairs." (Ibid.) "The mere placing of a trust in another person does not create a fiduciary relationship." (Ibid.) Further, "an agreement to communicate one's knowledge, exercising his special knowledge and skill in the area of learning concerned, does not create a trust but only a contractual obligation." (Ibid.) The FAC alleges Plaintiffs entered into an agreement with Defendant Chandel for him to serve as outsourced CFO for Plaintiff Elite pursuant to which Defendant Chandel was to perform bookkeeping, accounting, financial planning and tax preparation services, perform advisory and supervisory services, perform management and oversight services on behalf of Plaintiff Elite, and provide consulting and advisory services to all Plaintiffs in strategic business, tax and estate planning. (FAC, ¶ 62.) "The agreement obligated Defendants Chandel and/or Focus to prepare [sic] perform all of the services described herein (1) correctly, and (2) with the skill and care of a certified public accountant." (FAC, ¶ 63.) As alleged by Plaintiffs in the FAC, such agreement created nothing more than an obligation by Defendants to exercise their skill and special knowledge. This is insufficient to establish that Defendants were acting as fiduciaries with respect to the accounting services it provided to Plaintiffs. Accordingly, the demurrer to the fourth cause of action is SUSTAINED. Plaintiffs have 10 days leave to amend the FAC. The case management conference is continued to February 22, 2027 at 9:00 a.m. Defendants shall give notice of this ruling.
54.	Gonzalez v. General Motors LLC	Plaintiff Salvador Gonzalez's Motion for Attorney fees is GRANTED. Defendant General Motors, LLC shall pay <u>\$17,385.00</u> in reasonable attorney fees and <u>\$721.24</u> in costs and expenses

#	Case Name	Tentative																																												
2025-01485324	to Plaintiff. (See Code Civ. Proc., §1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Reza Decl. ¶¶ 4-15[description of services performed]; 21-30 [justification for hourly rates sought], 37-39 [timekeeping procedures]; and Ex. C [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work (including 2.5 hours spent preparing the reply brief and an additional 0.5 hours to prepare for the hearing) at the reasonable hourly rates sought by the following timekeepers: <table><tr><th>Timekeeper</th><th>Role</th><th>Rate</th><th>Hours</th><th>Total</th></tr><tr><td>Ashkan Reza</td><td>Attorney</td><td>\$625</td><td>13</td><td>\$8,125.00</td></tr><tr><td>Lauren Warwick</td><td>Attorney</td><td>\$425</td><td>20</td><td>\$8,500.00</td></tr><tr><td>Michelle Nguyen</td><td>“Case Manager”</td><td>\$95</td><td>2.1</td><td>\$199.50</td></tr><tr><td>Dianne Martin</td><td>“Case Manager”</td><td>\$95</td><td>4.8</td><td>\$456.00</td></tr><tr><td>Adriana Hernandez</td><td>Legal Support</td><td>\$95</td><td>0.5</td><td>\$47.50</td></tr><tr><td>Mailei Bennett</td><td>Paralegal</td><td>\$95</td><td>0.4</td><td>\$38.00</td></tr><tr><td>Chris Coyoc</td><td>“Case Manager”</td><td>\$95</td><td>0.2</td><td>\$19.00</td></tr><tr><td></td><td></td><td></td><td>41.0</td><td>\$17,385.00</td></tr></table> Plaintiff has adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market. Plaintiff has not provided sufficient facts that justify the proposed hourly rates for the support team that participated in this case. The Court	Timekeeper	Role	Rate	Hours	Total	Ashkan Reza	Attorney	\$625	13	\$8,125.00	Lauren Warwick	Attorney	\$425	20	\$8,500.00	Michelle Nguyen	“Case Manager”	\$95	2.1	\$199.50	Dianne Martin	“Case Manager”	\$95	4.8	\$456.00	Adriana Hernandez	Legal Support	\$95	0.5	\$47.50	Mailei Bennett	Paralegal	\$95	0.4	\$38.00	Chris Coyoc	“Case Manager”	\$95	0.2	\$19.00				41.0	\$17,385.00
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#	Case Name	Tentative
		reduces the hourly rate for each support timekeeper to \$95/hour which the court finds to be commensurate with a reasonable hourly rate for litigation support work in this market for this type of matter. The Court credits the accuracy of Moving Party's time records. (See <i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 784-785.) However, the Court finds that the records include duplicative and non-compensable billing, and has reduced the hours to reflect that fact. The fee award has been reduced to reflect the number of hours reasonably spent to complete the tasks involved in this lawsuit, where no motion practice, pleadings challenges, depositions, or substantive court hearings were required. (See <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [no abuse of discretion where trial court reduced fee award to account for duplicative and unnecessary billing].) The Court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel's skill and contingency risk are reflected in the reasonable hourly rates described above. Plaintiff's memorandum of costs seeks recovery of reasonable and necessary costs and the full request of \$721.24 is GRANTED. The Court orders this case dismissed without prejudice with the Court retaining jurisdiction to enforce the terms of the settlement. Plaintiff shall give notice of this ruling.
55.	Jones v. Myers 2026-01542899	Plaintiff Desiree Jones' motion to quash the "wrongful Abstract of Judgment recorded by Defendant on or about May 6, 2026, with the Orange County Recorder's Office" is DENIED. A motion to expunge an abstract of judgment will not be granted on the ground that the judgment debtor currently owns no real property, because the lien validly attaches to after-acquired property interests and the absence of current property ownership is not a recognized basis for expungement of an otherwise proper abstract. (See Ca. Civ. Pro. Section 697.340(b) ("If any interest in real property in the county on which a judgment lien could be created under subdivision (a) is acquired after the judgment lien was created, the judgment lien attaches to such interest at the time it is acquired."); <i>O'Neil-Rosales v. Citibank (South Dakota)</i> (2017) 11 Cal.App.5th Supp.1, 8 ("Assuming plaintiff was correct and

#	Case Name	Tentative
		[plaintiff] had no real property interest in the . . .property, [defendant]'s recording of the abstract did not create a real property lien against the . . .property.”)) Jones shall give notice of this ruling.
56.	Myron v. Fitness International LLC 2025-01531632	Defendant Fitness International, LLC's Demurrer to the First Amended Complaint ("FAC") is SUSTAINED. Defendant demurs to the second cause of action for negligent hiring, supervision and retention. "California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (<i>McKenna v. Beesley</i> (2021) 67 Cal.App.5th 552, 566.) The FAC fails to allege the identity of any particular employee, the unfitness of said employee, what the employee did or did not do, or how the said employee's actions caused harm to Plaintiff. (See CACI 426.) Plaintiff has not opposed the demurrer, and therefore has not demonstrated a reasonable possibility that the defect can be cured by way of a further amended complaint. Therefore, the demurrer to the second cause of action is SUSTAINED without leave to amend. Defendant shall give notice of this ruling.
57.		
58.	Rogers v. Guzman 2023-01301897	The claim of exemption by plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers is GRANTED in part, in the amount of \$16,518.00, as exempt Social Security payments. (Code Civ. Proc., § 704.080; Claim of Exemption, ¶¶ 6, 8, and Attachment 6 thereto.) The remainder of the claims of exemption are DENIED, as claimants have not shown that the remaining levied funds are exempt. (Code Civ. Proc., §§ 703.080, subd. (b), 703.580, subd. (b) [claimants' burden].) Judgment creditors shall give notice of this ruling.
59.	Rueda v. SKRT	The motion to consolidate is ordered OFF CALENDAR.

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